

		and shows how the eighth cause of action may be properly amended, leave to amend is denied. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Errors and confusion created by “the inept pleader” are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (<i>Saunders v. Cariss</i> (1990) 224 Cal.App.3d 905, 908.) A demurrer for uncertainty should be overruled if the facts are presumptively within defendant’s knowledge. (<i>Khoury</i>, 14 Cal.App.4th at 616.) A party attacking a pleading on “uncertainty” grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. (<i>Fenton v. Groveland Community Services Dept.</i> (1982) 135 Cal.App.3d 797, 809, disapproved on other grounds in <i>Katzberg v. Regents of the University of California</i> (2002) 29 Cal.4th 300.) Here, the eighth cause of action is not so unintelligible that Cross-Defendants cannot reasonably respond. Any ambiguities can be clarified through discovery. (<i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135; <i>Khoury</i>, 14 Cal.App.4th at 616.) Accordingly, the special demurrer is overruled. Cross-Defendants shall give notice.
5.	2026-1559626 Hernandez vs. Garduno	Plaintiffs’ Motion to Strike the Proof of Service is granted. Plaintiffs filed a Declaration of Diligence re: Francisco Garduno (ROA 10) under the wrong event, as a “Proof of Service,” and then re-filed the same document under the correct event, as a “Declaration of Diligence” that same day (ROA 12.) The Court has inherent discretion under CCP section 128, to “preserve and enforce order in its immediate presence” and to “provide for the orderly conduct of proceedings before it.” (Code Civ. Proc., § 128, subd. (a)(1), (a)(3).) In the Court’s exercise of this discretion, the Clerk is hereby ordered to strike the document erroneously filed as a “Proof of Service,” on 5/13/26 (ROA 10).
6.	2025-1529605 Newport Medical Solutions vs. Orthopedic Institute of Newport Beach	<i>No tentative.</i>